



File No.: EXP202300103

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access against IBERDROLA CLIENTES, S.A.U. (hereinafter, the respondent) without receiving the legally established response to their request.

The claimant states that, after requesting a contract with the respondent, it was denied due to being included in debt files. They request access to the common credit information systems Asnef and Experian, which inform them that their personal data is not included. They provide a report from the Bank of Spain on Financial Information and Central Risks. The claimant also requests access from the respondent via email, and no response is given to their request.

SECOND: Initially, the complaint filed by the claimant was archived by this Agency as the access request was not considered direct. However, in the appeal for reconsideration submitted by the claimant, the request is made clear, and the appeal is upheld as the complaint was not addressed. Now, as a result of the favorable appeal for reconsideration, we resolve this complaint regarding the right of access.

On July 3, 2023, the respondent was informed of all that had occurred, the original complaint, the appeal submitted by the claimant, and the favorable resolution of that appeal so that they could present arguments or address the requested right.

The respondent has not presented any arguments nor do we have any record of them addressing the right.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors

to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns them the function of cooperating with that authority.

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons in case they do not intend to address such requests.

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request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the responsible party.

The communication addressed to the interested party in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data." Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request being deemed fulfilled (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about

transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others, meaning that the right of access will be granted in such a way that it does not affect third-party data.

V

Conclusion

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During the processing of this procedure, the entity being claimed, in principle, responded to this Agency regarding other issues, but once it was notified for not attending to the right of access and after a new claim was opened following the filing of the first, it does not demonstrate having addressed the request made by the claiming party, sending the required response to their request.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that those responsible must issue, even in the event that there are no data in the files or even in those cases where it does not meet the required criteria, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claiming party informing them about the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the claim that originated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that Article 15 of the GDPR has been infringed and to urge IBERDROLA CLIENTES, S.A.U. with NIF A95758389, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period.

Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to IBERDROLA CLIENTES, S.A.U.

In accordance with the provisions established in article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions established in article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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